

TENTATIVE RULINGS FOR MAY 7, 2026
Department R17
BEFORE THE HONORABLE JANET M. FRANGIE
(sitting on assignment)

PLEASE NOTE: There may be multiple tentative rulings so view the entire document.

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court's website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See www.sb-court.org/general-information/remote-access) If you do not have Internet access you may obtain the tentative ruling by calling (909) 285-3753 or telephoning the department at 909-285-3732] If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING

1.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVRS2505731	<i>Min Wang, et al v Cheng Chang, et al</i>	Plaintiff Min Wang's Motion to Compel

Tentative Ruling:

Motion to Compel:

Grant. Defendant Cheng Chang is ordered to serve verified answers, without objection, to the Request and produce all responsive documents on Plaintiffs' attorney on or before June 1, 2026.

Sanctions:

Defendant Cheng Chang is ordered to pay to Plaintiffs' attorney the sum of \$1,000.00 in attorney fees or before June 1, 2026

Moving party is directed to give notice of the Court's rulings.

2.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVRS2510110	<i>Francisco Aguilar v Omnitrans, et al</i>	Defendant Omnitrans' Demurrer to Complaint

Tentative Ruling:

Request for Judicial Notice:

The Request for Judicial Notice is denied as moving party does not provide any authority in the notice for its Request for Judicial Notice.

Demurrer:

1. Late-filed Opposition:

On April 29, 2026, Plaintiff filed his Opposition which is untimely. No proof of service for the Opposition was filed, but in its Reply, Omnitrans acknowledges receiving the Opposition on April 29, 2026. The Court, in its discretion, may refuse to consider late-filed papers in ruling on a motion. In such event, the court's minutes or order must so indicate. (Cal. Rules of Court, rule 3.1300(d).) However, some courts have held that a court has discretion to consider late-filed papers even without a Section 473 showing. (*Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202 [filing 2 days late with no showing of prejudice by other side supported court's discretion in "view of the strong policy of the law favoring the disposition of cases on the merits"].)

In its Reply, Omnitrans objects to the late filed Opposition and requests the Court disregard it as it has been prejudiced by having less time to evaluate and respond to the Opposition. However, Omnitrans waived any defect regarding late filing and service by arguing on the merits in the Reply. (*Clark v. Stabond Corp.* (1987) 197 Cal.App.3d 50, 58-59.) Therefore, the Court exercises its discretion and considers the late-filed Opposition.

2. Exhaustion of Administrative Remedies:

The demurrer is overruled. Omnitrans demurs to the First through Sixth Causes of Action, arguing that Plaintiff failed to exhaust his administrative remedies prior to filing suit.

Preliminarily, the Court disregards Exhibit 1 as not properly before the Court and constitutes improper extrinsic evidence. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.) Here, the Complaint alleges that Plaintiff exhausted all administrative prerequisites required under the Fair Employment and Housing Act and on August 8, 2025, the California Civil Rights Department (CRD) issued Plaintiff a Right-to-Sue Notice, thereby authorizing Plaintiff to file this civil action. Plaintiff alleges he brings all the instant FEHA causes of action pursuant to that Right-to-Sue. Omnitrans fails to advance any arguments as to the Complaint's failure to allege exhaustion of Plaintiff's administrative remedies aside from its contentions regarding the deficiencies of Plaintiff's CRD Complaint.

3. Claims Not Viable against a Public Entity:

The demurrer to the Ninth Cause of Action is sustained, with leave to amend. As to the Ninth and Thirteenth Causes of Action, Omnitrans argues Plaintiff's claims are not ones that can be made against a public entity. Omnitrans sets forth different arguments as to each cause of action. The Complaint, however, fails to allege vicarious liability as to the Ninth Cause of Action and fails to specifically set forth what actions by Omnitrans' employees it is being held vicariously liable for.

The demurrer to the Thirteenth Cause of Action is sustained, **without leave to amend**.¹ Governmental entities are not included within the definition of "person" and therefore cannot be sued under the Unfair Competition Law. (*People for the Ethical Treatment of Animals, Inc. v. California Milk Producers Advisory Bd.* (2005) 125 Cal.App.4th 871, 878-879.)

4. Government Claims Act:

The demurrers are overruled. As to the Tenth, Eleventh and Twelfth Causes of Action, Omnitrans argues Plaintiff failed to comply with the Government Claims Act. The Complaint's allegations in paragraphs 91, 97 and 102 are sufficient for pleading purposes to withstand a demurrer.

5. Worker's Exclusivity Doctrine:

The demurrers are sustained, with leave to amend. Omnitrans demurs to Tenth, Eleventh and Twelfth Causes of Action on the grounds that Plaintiff's claims are barred under the worker's compensation exclusivity doctrine. Omnitrans' demurrer is directed at Plaintiff's non-FEHA tort claims—intentional infliction of emotional distress, negligent supervision, training, and retention, and negligent failure to maintain a safe workplace/negligent handling of workplace violence. All of the Complaint's allegations relate to the operation of Omnitrans' business and either Plaintiff's employment (i.e., his termination) or the conditions of his employment which are subject to worker's compensation exclusivity. (See *Cole v. Fair Oaks Fire Protection Dist.* (1987) 43 Cal.3d 148, 160)

Motion to Strike:

At the end of the Demurrer, Defendant has inserted a purported "Motion to Strike." However, this Motion is not properly noticed. Therefore, the Court disregards this Motion, without prejudice.

¹ "Leave to amend should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law." (*Lawrence v. Bank of America* (1985) 163 Cal.App.3d 431, 436 (emphasis added); *Schonfeldt v. State of Calif.* (1998) 61 Cal.App.4th 1462, 1465 [if no liability as a matter of law, leave to amend should not be granted].)

Summary:

1. Omnitrans' Request for Judicial Notice is denied.
 2. Omnitrans' demurrers to the First, Second, Third, Fourth, Fifth and Sixth Causes of Action in the Complaint are overruled.
 3. Omnitrans' demurrer to the Ninth Cause of Action is sustained, with leave to amend.
 4. Omnitrans' demurrers to the Tenth, Eleventh and Twelfth Causes of Action on the grounds that Plaintiff failed to comply with the Government Claims Act are overruled.
 5. Omnitrans' demurrers to the Complaint's Tenth, Eleventh and Twelfth Causes of Action are sustained, with leave to amend on the grounds that Plaintiff's claims are barred under the worker's compensation exclusivity doctrine.
 6. Omnitrans' demurrer to the Thirteenth Cause of Action is sustained, without leave to amend.
 7. Omnitrans' motion to strike is denied.
 8. Court continues TSC set for 6/10/2026 to 9/10/2026
- Moving party is directed to give notice of ruling.

3.

CASE NUMBER	CASE NAME	TYPE OF HEARING
CIVSB22259070	<i>Peng Liang Gang, et al v Rose Chang, et al</i>	Defendant Rose Chang's Motion to Vacate Judgment

Tentative Ruling:

Motion:

The motion is denied. Unless Defendant Rose Chang (aka Hsiu-Lan Chang) is an attorney, she may not bring a motion on behalf of Defendant Hsin-Wen Huang.

Moreover, there is no proof of service showing that any other party was served with this Motion.

The judicial assistant is directed to give notice of ruling.